



TOOSPOINT CONSULTING

CONSULTING AGREEMENT

ToosPoint Consulting × Vivified Solutions

Effective Date: **July 1, 2026**
Document Type: **Consulting Agreement**
Classification: **Confidential**



This **Consulting Agreement** (the “Agreement”) is entered into between **ToosPoint Consulting** (“Consultant”) and **Vivified Solutions** (“Company”). The parties agree to the terms and conditions set forth herein.

1. Scope of Services

Consultant will provide sales, business-development, and partnership-execution support to the Company across the following core focus areas:

LSP Partnership Outreach

- Identification and qualification of target Language Service Provider (LSP) partners aligned with the Company’s service mix and language coverage
- Outreach and relationship development with LSP decision-makers, leveraging Consultant’s existing industry relationships and prior contacts to accelerate engagement
- Negotiation support around partnership structure, rate cards, SLAs, technology integration, and co-selling arrangements
- Pipeline tracking and reporting on partnership conversations and converted relationships

Direct Client Acquisition

- Targeted cold-calling and cold-emailing campaigns against curated prospect lists in priority verticals (medical, healthcare, education, and adjacent regulated markets)
- End-to-end sales-cycle support from first touch through discovery, qualification, demo coordination, proposal, and contract close
- Development and ongoing refinement of outbound messaging, call scripts, email sequences, and follow-up cadences
- Maintenance of an opportunity pipeline with stage, owner, next step, and forecast for each active prospect

Sales Collateral & RFP Execution

- Creation of a Vivified-branded sales deck, capability statement, one-pagers, case-study templates, and supporting leave-behind materials
- Identification of relevant Requests for Proposal (RFPs), Requests for Information (RFIs), and Requests for Quotation (RFQs) in target verticals and government channels
- Full RFP lifecycle ownership from intake and bid/no-bid recommendation through written response, pricing input, compliance review, and submission
- Preparation and delivery support for finalist presentations, orals, and follow-up clarifications



Cloud Platform Selection

- Collaboration with the Vivified team to define functional, technical, security, and budget requirements for a cloud-based interpretation / language-services delivery platform
- Market scan, vendor short-listing, and structured comparison of candidate platforms across feature coverage, total cost of ownership, integration footprint, and roadmap fit
- Coordination of demos, references, pilot scoping, and commercial negotiation
- Recommendation memo and decision support for the final platform selection

2. First 30-Day Deliverables

Within the first **thirty (30) calendar days** following the Effective Date, Consultant will deliver the following milestones:

- **Sales deck and supporting collateral** completed and approved for use in outbound and RFP responses
- **Two (2) or more RFP submissions** prepared and delivered to qualifying opportunities
- **Target-account research** for outreach across the medical, healthcare, and education verticals, delivered as a working prospect list with contact data, qualification notes, and prioritization
- **Outreach kickoff** on the qualified prospect list and on identified LSP partnership targets

Advisory Capacity. All recommendations made by Consultant are advisory in nature. Final decision-making authority on all business, commercial, and operational matters rests with the Company.

3. Compensation

Company agrees to pay Consultant a **monthly retainer of \$4,500 USD** for services rendered under this Agreement. Consultant shall submit a monthly invoice on or near the first business day of each month. Payment is due **Net 15** from the invoice date, payable via **wire transfer, Zelle, Venmo, or PayPal**.

- The monthly retainer is a flat fee and is not contingent on a specific deliverable count beyond the milestones expressly identified herein
- No commission, revenue share, or success fee is payable under this Agreement; compensation is strictly the monthly retainer

4. Time Commitment



Consultant shall make available approximately **ten (10) hours per calendar week** in support of the services described herein. Hours may be scheduled flexibly to accommodate the needs of the Company and the availability of Consultant.

- Hours not used in a given week do not roll forward and do not accrue as a credit
- Material and sustained increases beyond the weekly commitment shall be discussed and agreed in writing, and may result in an adjusted retainer
- Consultant retains discretion over the methods, sequence, and timing of work, provided service obligations are met

5. Term and Termination

- This Agreement will begin on **July 1, 2026** (the “Effective Date”) and continue on a **month-to-month** basis until terminated.
- Either party may terminate this Agreement with **30 days written notice**.
- Upon termination, Company shall pay Consultant the prorated portion of the monthly retainer for services rendered through the effective termination date.

6. Independent Contractor

Consultant is an **independent contractor** and not an employee, agent, or partner of the Company. Consultant retains sole responsibility for all taxes, benefits, insurance, and obligations arising from Consultant’s business operations. Nothing in this Agreement shall be construed to create an employment, partnership, joint-venture, or agency relationship. Consultant has no authority to bind the Company or to enter into any agreement on the Company’s behalf without prior written authorization.

7. Confidentiality

Both parties agree to maintain the confidentiality of each other’s proprietary information, trade secrets, client and prospect lists, partner relationships, pricing data, financials, and business strategies disclosed in the course of this engagement. This obligation shall:

- Survive the termination of this Agreement for a period of **three (3) years**
- Not apply to information that is publicly available through no fault of the receiving party



- Not restrict either party from disclosures required by law or court order, provided that prompt written notice is given to the other party where lawful

8. Ownership of Work Product

All deliverables, sales materials, RFP responses, prospect lists, and work product specifically prepared by Consultant for Company under this Agreement shall, upon full payment of the applicable monthly retainer, be owned by Company. Consultant retains ownership of its pre-existing methodologies, templates, frameworks, outreach playbooks, and general know-how, and nothing in this Agreement shall be construed as a transfer of such pre-existing intellectual property. Consultant is granted a perpetual right to reference the engagement generally for portfolio and credentialing purposes, subject to the confidentiality obligations herein.

9. Non-Solicitation

During the term of this Agreement and for **twelve (12) months** thereafter, neither party shall directly solicit for employment any employee, contractor, or partner introduced by the other party in connection with this engagement, without the other party's prior written consent. General public job postings shall not be considered solicitation.

10. Limitation of Liability

Except for breaches of confidentiality or willful misconduct, neither party shall be liable to the other for indirect, incidental, consequential, special, or punitive damages arising out of or related to this Agreement. Consultant's aggregate liability under this Agreement shall not exceed the total fees paid by Company to Consultant during the three (3) months immediately preceding the event giving rise to the claim.

11. Governing Law

This Agreement shall be governed by and construed in accordance with applicable laws as agreed upon by both parties. Any disputes arising under this Agreement that cannot be resolved through good-faith negotiation shall be submitted to binding arbitration before commencing litigation. This Agreement constitutes the entire understanding between the parties with respect to its subject matter and supersedes all prior discussions and agreements. It may be amended only by a written instrument signed by both parties, and may be executed in counterparts, including by electronic signature.



IN WITNESS WHEREOF

the parties have executed this Agreement as of the date first written above.

Authorized Signature

Authorized Signature

ToosPoint Consulting
Consultant

Vivified Solutions
Company

Printed Name

Printed Name

Date

Date

CONFIDENTIALITY NOTICE: This document contains confidential and proprietary information belonging to ToosPoint Consulting and Vivified Solutions. Unauthorized disclosure, copying, or distribution of this document or the information contained herein is strictly prohibited.